

Court No. - 37

Case :- WRIT - C No. - 10724 of 2014

Petitioner :- Parvez Akhtar

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Smt. Anjana Devi, Jagannath Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

By means of this petition, the petitioner is challenging the modified electricity bill. It does not relate to recovery. As such, this Bench will not have jurisdiction to entertain this petition.

Put up on 24.2.2014 as a fresh case before the appropriate Bench.

Order Date :- 19.2.2014

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

Court No. - 21

Case :- WRIT - C No. - 10724 of 2014

Petitioner :- Parvez Akhtar

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Smt. Anjana Devi, Jagannath Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Put up day after tomorrow on the request of learned counsel for the respondent-Electricity Department to obtain instructions.

Order Date :- 24.2.2014

Lalit Shukla

Court No. - 21

Case :- WRIT - C No. - 10724 of 2014

Petitioner :- Parvez Akhtar

Respondent :- U.P. Power Corporation Ltd. And Another

Counsel for Petitioner :- Smt. Anjana Devi, Jagannath Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad for the respondents-Power Corporation.

Sri Mahboob Ahmad submits that the entries in the ledger of the respondent-Corporation do not indicate the facts as alleged in relation to the deposits said to have been made by the petitioner and the reduction of the bill as alleged in the writ petition.

Sri Ahmad, however, submits that the order which has been passed on 27.11.2013, pursuant to the direction of the High Court dated 11.11.2013, does not contain the entire details which are being desired by the petitioner.

He, however, submits that the calculations are available on record to indicate that the demand which has now been raised is a correct demand.

He, however, submits that the said reasons and the details shall be supplied to the petitioner within a week.

Let the Executive Engineer inform the entire details to the petitioner through a written order within a week. The order shall be communicated to the petitioner after considering the representation, filed by the petitioner, as directed by the High Court earlier. After receipt of the communication, in case the petitioner is still aggrieved, it shall be open to the petitioner to approach the competent authority under Clause 7.10 of the Electricity Supply Code, 2005.

With the aforesaid observation and direction, this writ petition is disposed of at this stage.

Order Date :- 26.2.2014

Anand Sri./-